

Tentative Rulings for Department 502

Begin at the next page

(20)

Tentative Ruling

Re:

Perez v. Perez et al.

Superior Court Case No. 23CECG00025

Hearing Date:

August 26, 2026 (Dept. 502)

Motion:

(1) By Defendants to Set Aside Default of Nina Perez

(2) By Plaintiff to Compel Further Responses by Nina Perez to Sets Two of Special Interrogatories, Request for Production of Documents, Requests for Admissions

Tentative Ruling:

(1) To grant in part and direct the clerk to set aside the default of Nina Perez ("Nina") that was entered on June 4, 2026. (Code Civ. Proc., § 473, subd. (b).) Nina shall file her answer to the Third Amended Complaint within five days of service of the order by the clerk.

(2) To deny all three motions to compel. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1); 2031.310(b)(2), 2033.290, subd. (b)(1).)

Explanation:

Motion to Set Aside Default

Nina moves to set aside her default entered on June 4, 2026. As the court noted in granting Roberto Perez's motion to set aside his default, it is unclear why defense counsel did not simply file an answer when he knew the request for entry of default had been submitted but not yet acted upon by the court. Counsel is making it rather difficult to find his neglect to be excusable. However, relief under Code of Civil Procedure section 473, subdivision (b), can be based either on:

- An 'attorney affidavit of fault', in which event, relief is mandatory; or
- Declarations or other evidence showing 'mistake, inadvertence, surprise or 'excusable neglect,' in which event relief is discretionary.

"(W)henever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an **attorney's sworn affidavit** attesting to his or her mistake, inadvertence, surprise or neglect, (the court shall) vacate any (1) resulting *default* entered by the clerk ... or (2) resulting *default judgment or dismissal* entered against his or her client ..." (Code Civ. Proc., § 473, subd. (b), emphasis added.)

The court construes Mr. Porter's declaration to be an "attorney affidavit of fault." He states, "I admit that in hindsight, procedurally, an answer for both of my clients' should have been filed within 30 days of December 10, 2025." (Porter Decl., ¶ 12.) While he

advances a number of arguments attempting to show that his neglect was reasonable or excusable, in light of the fact that he has fallen on his sword and admitted his mistake, the motion will be granted, as there is no requirement that the neglect be excusable. And certainly no prejudice has resulted to plaintiff.

Again, the court notes that it is an unfair and almost dirty tactic to quietly enter the default of a defendant, represented by counsel, without first giving advance warning. Though plaintiff represents himself, the California Attorney Guidelines of Civility and Professionalism¹, section 15: "An attorney should not take the default of an opposing party known to be represented by counsel without giving the party advance warning. For example an attorney should not race opposing counsel to the courthouse to knowingly enter a default before a responsive pleading can be filed. This guideline is intended to apply only to taking a default when there is a failure to timely respond to complaints, cross-complaints, and amended pleadings."

Motion to Compel

Plaintiff moves to compel further responses from Nina to sets two of Special Interrogatories, Request for Production of Documents, Requests for Admissions. The motions are denied for failure to file an adequate meet and confer declaration.

Each motion to compel further responses must be accompanied by a declaration *stating facts* showing a "*reasonable and good faith attempt*, either in person, by telephone or by videoconference" to resolve informally the issues presented by the motion *before filing the motion*. (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1) [interrogatories]; 2031.310(b)(2) [inspection demands], 2033.290, subd. (b)(1) [requests for admission]; *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138, fn. 9 [declaration must accompany notice of motion, along with all other documents supporting notice of motion].) The attempt to resolve informally may be made *either* by conferring "in person, by telephone, or by videoconference with an opposing party or attorney." (Code Civ. Proc., § 2023.010, subd. (i) [failure to make such attempt constitutes "misuse of discovery process"].) Various factors may be considered by the court in determining whether a party made a "reasonable" and "good faith" attempt to resolve the issue informally, including:

- *Size of case, complexity of discovery*: Greater effort at informal resolution may be required in larger, more complex cases;
- *Previous relations with opposing counsel*: The history of the litigation and the nature of the interaction between counsel;
- *Present dispute*: The nature of the issues, and the type and scope of discovery requested;
- *Timing*: Making the first attempt to meet and confer shortly before the filing deadline may lead to a finding that there was no good faith attempt to resolve the issues informally. Conversely, a delayed response to a meet and confer letter may lead to the same finding as to the responding party;
- *Prospects for success*: Whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit;

¹ https://www.calbar.ca.gov/sites/default/files/2026-01/Civility-Guidelines_Samples.pdf

- *Evidence of discovery abuse?* When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden.

(*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.)

Plaintiff's declarations filed in support of each motion contain the same conclusory and factually inadequate statement: "I engaged in good faith meet and confer efforts to resolve these issues, including written communications identifying deficiencies." (Perez Decl. re RFAs, 2:19-20; Perez Decl. re RPD, 2:22-23; Perez Decl. re SI, 2:26-26.) Only in the declaration regarding the SI does plaintiff provide a little more information:

However Defendant has not given responses in good faith. An excellent example of this is the follow up reply to Special Interrogatory 10. In a follow up Reply Argument from Defendant Roberto's Attorney Tres A. Porter Esq.: "Are you being serious? Parents tell children a number of things that are not true. Are you now contending a parent needs medical training to examine their children or to administer an enema? Also how is this in the slightest bit relevant to your specific allegations?" Defendant represented to Plaintiff and other minor children that enemas and vaginal examinations were medically necessary and that she possessed the knowledge to perform them. The vaginal examinations consisted of Nina inserting her fingers inside all 3 of her daughters vaginas. This is called SEXUAL ASSAULT. It is called PEDOPHILIA. Whether Defendant had any formal medical, nursing, or clinical training is directly relevant to the credibility and legitimacy of those representations. Whether Nina used 'medical necessity' as an excuse to undress her children goes to the heart of this interrogatory. This information bears on intent, a pattern of using cover stories to sexually abuse her children.

Even this is inadequate, as there is no specific *factual showing* that there was a good faith effort to resolve all disputes raised prior to filing the motions, or that there was any meet and confer *in person, by telephone or by videoconference*. The court requires strict compliance with all requirements for motions to compel further discovery responses, especially meet and confer. The court will not permit plaintiff to file a supplemental declaration showing adequate meet and confer, as the meet and confer declaration must be filed with the moving papers. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138, fn. 9.) Accordingly, the motions are denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

